

1. INTERNATIONAL LAWS ON CHILD LABOUR

a) UN Convention on the Rights of the Child (CRC)

- Defines a **child as anyone under 18 years**
 - Protects children from:
 - Economic exploitation
 - Work that is dangerous, harmful, or interferes with education
 - Requires governments to:
 - Set a **minimum working age**
 - Regulate working conditions and hours
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b) ILO Convention No. 138 – Minimum Age Convention

- Sets rules on **minimum age for employment**
 - Key points:
 - **Minimum age: 15 years** (14 for developing countries)
 - **Hazardous work: 18 years**
 - **Light work: 13–15 years**, if it does not harm health or education
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c) ILO Convention No. 182 – Worst Forms of Child Labour

Prohibits children (under 18) from:

- Slavery and human trafficking
 - Forced or compulsory labour
 - Child prostitution and pornography
 - Use of children in illegal activities (e.g. drug trafficking)
 - Hazardous work that endangers health, safety, or morals
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2. Laws on Child Labour in Kenya KE

a) The Constitution of Kenya (2010) – Article 53

- Every child has the right to:
 - Protection from **abuse, neglect, harmful cultural practices**
 - Protection from **hazardous or exploitative labour**
 - A child's **best interests are of paramount importance**
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b) Children Act, 2022

- Replaced the Children Act, 2001
 - Key provisions:
 - Prohibits employment of children in **hazardous work**
 - Protects children from economic exploitation
 - Requires access to education and proper care
 - Anyone violating child labour laws commits an offence
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c) Employment Act, 2007

- **Minimum age for employment: 16 years**
 - **Children under 18 cannot:**
 - Work at night
 - Work in industrial undertakings
 - Perform work that is dangerous to health, safety, or morals
 - Employers must keep **records of young workers**
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d) Occupational Safety and Health Act (OSHA)

- Prohibits children from working in unsafe environments such as:
 - Mines
 - Construction sites
 - Factories with heavy machinery
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3. Penalties for Child Labour (Kenya)

- Employers can face:
 - **Fines**
 - **Imprisonment**
 - Or **both**, depending on the offence
- Serious offences (worst forms of child labour) attract **heavier penalties**

Legal Punishments for Practicing Child Labour (Kenya KE)

a) Fines

- Employers found using child labour may be ordered to pay **heavy fines**
- Fines increase when:
 - The child is under 16
 - The work is hazardous
 - More than one child is involved

Purpose: **Punish and discourage** employers from exploiting children

b) Imprisonment

- Courts can sentence offenders to **jail time**
- Longer prison sentences apply when:
 - The child is forced to work
 - The child is abused, trafficked, or enslaved
 - The work endangers the child's life or health

Worst forms of child labour can lead to **several years in prison**

c) Both Fine and Imprisonment

- For serious or repeat offences, courts may impose:
 - **A fine AND imprisonment**
 - This applies especially to:
 - Employers who knowingly break the law
 - Organized or commercial exploitation of children
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2. Additional Penalties Beyond Court Punishment

a) Closure of Business

- Government authorities may:
 - Shut down businesses using child labour
 - Suspend or cancel operating licenses

Especially common for factories, farms, construction sites, and workshops

b) Blacklisting

- Employers may be:

- Barred from government contracts
 - Blacklisted from public or donor-funded projects
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c) Compensation to the Child

- Courts may order offenders to:
 - Pay compensation for harm caused
 - Cover medical care, counseling, and education costs

Focuses on **restoring the child's welfare**

3. Punishment for Worst Forms of Child Labour

For crimes such as:

- Child trafficking
- Forced labour
- Sexual exploitation
- Using children in criminal activities

Punishments include:

- **Very high fines**
- **Long-term imprisonment**
- Possible charges under **anti-trafficking and criminal laws**

These are treated as **serious criminal offences**, not just labour violations.

4. Responsibility of Parents or Guardians

- Parents/guardians who:
 - Force children into labour
 - Benefit financially from exploitative work

May face:

- **Legal action**
- **Loss of custody**
- Mandatory child protection intervention

5. Why Punishment Is Important

Punishing child labour offenders:

- Protects children's **health, dignity, and education**
- Discourages exploitation
- Promotes fair labour practices
- Upholds national and international law

